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IN THE THIRD DISTRICT COURT OF APPEAL

DAVID PETKOVICH,

Plaintiff-Appellant,

v.

SANDY POINT CONDOMINIUM APARTMENTS ASSOCIATION, INC.,

Defendant-Appellee

Appeal Case No.: 3D2025-1972

On Appeal from Sixteenth Judicial Circuit
in and for Monroe County, Florida
Case No.: 2016-CA-495-P

REPLY BRIEF OF PLAINTIFF-APPELLANT DAVID PETKOVICH

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INTRODUCTION

The Association has described the same 1986 document as an amendment, a conveyance, and a deed, depending on the statute in front of it. Each of the three principal arguments in its Answer Brief ("AB") fails.

First, it transforms the Reformation Order's reference to §718.110(10)—invoked below only to trigger the circuit court's jurisdiction—as an independent holding, although the remedy granted was equitable reformation.

Also, the trial court's 2019 orders found the statute inapplicable to actions taken ***after creation*** of a condominium. Second, it swaps a "submission" theory under §718.104(2) and (4) for the joinder theory under §718.104(6) it argued below. Neither substitute a deed.

Third, it finds a "meeting of the minds" in the adoption of the1986 Amended Declaration (the "Amendment") while ignoring the conflicting Maintenance Agreement the same owners executed contemporaneously and ***operated*** under.

These deficiencies pervade the AB. Joint "operation" of the lots did not convey Lot 331, and equity cannot substitute for or be characterized as a conveyance of legal title to real property.

ARGUMENT

This appeal challenges an incomplete and improper attempt to annex property in 1986 for a condominium created in 1975. It is not one involving hyper-technical gamesmanship. How reformation, quiet title, and limitations intersect with equity here could have far-reaching implications. Summary judgment, time limitations, and mootness are reviewed *de novo*. The Association points only to the Amendment and the 1988 Joinder as the source of its claimed interest in Lot 331—neither a conveyance of land, and an attempt to effectuate a conveyance does not suffice. [R.64–105; 7805; 1896–97].

I. THE TRIAL COURT ERRED IN DISMISSING PETKOVICH'S QUIET TITLE CLAIM AS MOOT WITHOUT NOTICE OF OR A REQUEST FOR THAT RELIEF.

A. The Court Granted Relief the Association Never Sought, and the Tipsy Coachman Doctrine Cannot Supply It.

The Association argues that Petkovich never challenged the mootness ruling below. (AB50.) But mootness was neither requested in the Association's summary judgment nor noticed for hearing (R.4465); it first appeared in the order itself. (R.5258). Granting summary judgment on grounds not raised in the motion is reversible error. *Otero v. Gomez*, 143 So.3d 1089, 1092–93 (Fla. 3d DCA 2014);

Design Neuroscience Ctrs. v. Fields, 359 So.3d 1232, 1234–35 (Fla. 3d DCA 2023); *Torres v. A&P Air Conditioning Corp.*, 430 So. 3d 327, 332 (Fla. 3d DCA 2026). Deciding a claim on a ground neither noticed nor argued denies due process. *See Mizrahi v. Mizrahi*, 867 So.2d 1211, 1213 (Fla. 3d DCA 2004); *Crescenzo v. Marshall*, 199 So.3d 353, 355–56 (Fla. 2d DCA 2016) (reversing *sua sponte* dismissal of quiet title complaint). The mootness ruling first appeared in the order. Petkovich could not object to a ruling before it was issued. *See Nationstar Mortg., LLC v. Weiler*, 227 So.3d 181, 183 (Fla. 2d DCA 2017).

The Association's alternative grounds—title, estoppel, and limitations (AB52–61)—were not raised in the summary judgment (R. 4408, 4465)[1] and tipsy coachman cannot support affirmance of a summary judgment on a ground the movant did not raise. *Sousa v. Zuni Transp., Inc.*, 286 So.3d 820, 822–23 (Fla. 3d DCA 2019). They also fail on the merits. *See* Part II, *infra*.

B. Reformation Did Not Resolve Whether the Association Had Authority to Annex Lot 331, and Thus the Claim Remained Live.

[1] The Association sought reformation; not dismissal of the quiet title claim based on title, estoppel, or limitations. The Association's filings stated "title is not in question." (R. 4006–08).

The Association contends that reformation "fully resolved" the quiet title claim evaluating a missing signature page. (AB49–50). It did not. Reformation corrects an instrument to read as it should have; it does not adjudicate title, create a conveyance that never existed, or enlarge the parties' rights. *Providence Square Assn. v. Biancardi*, 507 So.2d 1366, 1370–71 (Fla. 1987) (reformation is distinct from adjudication of title). The operative complaint alleged both that the 1986 amendment was not executed by all owners and that it transferred no part of Petkovich's property to the Association. (R.1642). Supplying Unit 107's signature page addresses only one allegation. A claim is moot only when "a judicial determination can have no actual effect." *Godwin v. State*, 593 So.2d 211, 212 (Fla. 1992); *see also Torres*, 430 So.3d at 333. Reformation left open whether the Association had authority to annex residential property at all under Chapter 711, Florida Statutes (1975), and Section 10(g) of the 1975 Declaration, which was unchanged in 1986. (R.68, 7805).

The Association calls the section 10(g) theory untimely. (AB50–52). The Initial Brief ("IB") raised it (IB1, 25–26), Petkovich raised it

below (R.1642, 4858-73, 8200, 8206-08, 9911), and the Association answered it on the merits (R.14870-73). It presents a legal question on undisputed recorded instruments that the Reformation Order did not decide.

The Association answers that it purchased nothing because the owners submitted their own property in signing the amendment. (AB51–52; R.4149–50). That does not answer the authority question. Section 10(g) permits the Association to acquire "leaseholds, memberships, and other possessory or use interests" in facilities "including . . . country clubs, golf courses, marinas, and other recreational facilities." (R.7805; IB6–7). It is not illustrative. Each example is a shared amenity, and the general words take their meaning from that list. (AB23). Fee title to land with residential improvements owned by others is not such an interest. Section 718.111(9), Florida Statutes (1986), authorized the purchase of units only, the bylaws likewise confine acquisitions (R.4935; IB42–45), and the Declaration reserved no right to expand (R.7805). Calling it a submission rather than a purchase changes nothing. The Association cannot obtain through "submission" an interest it had no power to acquire.

II. PETKOVICH'S QUIET TITLE CLAIM IS PROPERLY PLED, TIMELY, AND MERITORIOUS.

A. Petkovich Pled and Established Each Element of Quiet Title.

Petkovich alleged the ultimate facts required by Florida Rule of Civil Procedure 1.110(b): that the Association had no "right, estate, title, lien, or interest" in Lot 331. (R.59 at ¶29). The Association admits its claim to title derives only from the Amendment. (R.1798, 1801)[2].

Quiet title requires that "(1) [Petkovich] has a legal title to the property and (2) another entity [the Association] has an invalid claim to the title that (3) is a cloud on the plaintiff's title." *U.S. Bancorp v. Taharra Assets, 5545, Inc.,* 378 So.3d 630, 633 (Fla. 4th DCA 2024). The Association contends Petkovich's deed conveys only a condominium unit. (AB53–54). But the deed's description of a "unit" depends on the validity of the instrument under challenge. If the Amendment never annexed Lot 331, Petkovich took whatever

[2] The trial court found a break in the chain of title (R.3447–48), and a "submission" cannot stand in place of a conveyance.

interest his grantor held, and a deed that merely calls the property a "unit" conveys nothing to the Association.[3]

Petkovich need not prove perfect title; the Association's invalid claim is the cloud quiet title removes. Petkovich holds the improvements on Lot 331 and the last recorded warranty deed in its chain[4] (R. 108); the Association holds neither (R. 7796–7883, 14107 at ¶32). None of the instruments it relies on conveys fee simple, and the attempted annexation exceeded the powers in the 1975 Declaration and the Condominium Act then in force. (R.7805, 11492, 12488, 11189)[5].

B. The Claim is Not Time-Barred.

The Association argues that §95.11(2)(b) barred the claim because challenges to a recorded declaration accrue on recording. (AB59–61 (citing *Gallery One Condo. Ass'n v. Terrace Gallery, LLC*, 415 So. 3d 1076, 1081-82 (Fla. 4th DCA 2025))). The trial court

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3 Petkovich's purchase agreement and tax description do not reference the Association by name. The property taxes on Lot 331 were never treated as a common expense of the Association, as section 10(g) would require. (R.9999, 12488, 11492-96, 11190).

4 Petkovich's February 18, 2015 Deed is recorded in the Official Records of Monroe County, Florida at OR 2725-155-56.

5 *See also* Fla. Stat. §§711.64(3) & (4) (1974), 718.403 (1975), 718.403(1) (1985).

rejected that defense (R.3470–71) and the repose argument, because Petkovich challenges "actions taken by the Association after its ***formation***."[6] (R.4074–76; 3450–53) (emphasis added). *Gallery One* involved challenges to an instrument encumbering land its owners had submitted. Petkovich contends instead that no record owner conveyed Lot 331 and the 1975 Declaration did not permit its acquisition. This Court held that his claim is not "founded upon a duly recorded instrument," *Petkovich v. Sandy Point Condo. Apartments Ass'n*, 325 So. 3d 201, 204 (Fla. 3d DCA 2021), so §95.11(2)(b) does not govern it. Even if it did, the claim was timely. A cause of action accrues "when the last element constituting the cause of action occurs." *Harris v. Aberdeen Prop. Owners Ass'n*, 135 So.3d 365, 368 (Fla. 4th DCA 2014). Here, accrual began when Petkovich's deed was recorded on February 18, 2015. He sued on August 31, 2016, and made this argument below. (R.3408; 4066–67, 13854). Applying the statute here would "validate titles" where none passed (R.3467), contrary to *Davis v. Hinson*, 67 So.3d at 1111–12. *See* Part

6 *Helen Lane Condominium Ass'n v. Rossiter,* 1995 WL 17206835, Case No. 95-0221 (Fla. DBPR Arb., Nov. 6, 1995), involved converting a mobile home park and forming a condominium.

III.C, *infra*. The counterclaim, by contrast, is "founded on" the 1986 instrument and accrued at recording. (R.8743, 8760.)

C. Neither Estoppel Nor the Association's New "Submission" Theory Can Supply the Missing Conveyance.

The Association invokes estoppel by deed. (AB54–57). Its cases enforced reservations and restrictions the grantor or a third party had power to impose. *See Dade County v. Little*, 115 So. 2d 19, 22 (Fla. 3d DCA 1959); *Leffler v. Smith*, 388 So. 2d 261, 263 (Fla. 5th DCA 1980); *Davis v. Verandah at Lake Grady Homeowners Ass'n*, 354 So. 3d 1140, 1144 (Fla. 2d DCA 2023).

Estoppel, however, does not bind a grantee to an interest the Association never acquired or validate an act it had no power to take. Estoppel "does not operate to confer authority . . ." *Therrell v. Reilly*, 111 Fla. 805, 812 (Fla. 1932). An association's act beyond the powers its governing documents confer is *ultra vires* and invalid, even if approved by a proper vote, and cannot deprive an owner of his individual rights. *S&T Anchorage, Inc. v. Lewis*, 575 So. 2d 696, 698 (Fla. 3d DCA 1991). Petkovich also challenges the Association's power to add residential units, which Section 10(g) withheld. *See* Part

I.B, *supra.* A later deed's reference to the amendment cannot supply that power.

Estoppel also "may be applied in defense of a title, but not to establish one." *City of Naples v. Morris*, 71 So. 2d 905, 905 (Fla. 1954); *cf. Tunnage v. Green*, 947 So. 2d 686, 689 (Fla. 4th DCA 2007). No recorded instrument conveys Lot 331 to the Association. (R. 7796–7883). Whether Petkovich's grantor held a condominium parcel depends on whether the Amendment lawfully submitted Lot 331—that is the question at issue because of the Association's faulty corporate records. (AB54 n.5).

The recast "submission" theory fares no better. The Condominium Act does not recognize "submission" as a third method of creating a condominium. Section 718.104(1) permits a condominium creation only on land owned in fee simple or leased under §718.401. Section 718.104(6) subjects to a declaration the interest of a person who "joins or consents" to it. It applies to an owner already in the regime; ***it is not a device for neighboring fee-simple landowners to place residential property into an existing nine-unit condominium without a conveyance.***

Below, "submit" described the owners' joinder under §718.104(6). (R.5217–19). The AB converts the verb into a noun—"submission"—and treats the Amendment itself as a method of placing land into the condominium under §718.104(2) and (4). Neither theory transfers title. Section 718.104(6) subjects property to the condominium's governance. An amendment cannot be both the sole source of title and an interest already within the condominium.

III. THE REFORMATION RULING IS INCORRECT AS A MATTER OF LAW

A. Section 718.110(10) Was Invoked for Jurisdiction, Not Reformation, and Cannot Annex Uncontemplated Residential Property or Cure Post-Creation Defects.

The Association now treats §718.110(10) as an independent ground for the Reformation Order. It invoked the statute below only for the proposition that "jurisdiction to correct errors or omissions in a declaration of condominium … lies with the circuit court" (R.3645) and then sought equitable reformation under *Providence Square* and *Smith*. (R.3645–46). The Reformation Order follows suit: it "finds that reformation is the proper remedy," citing *Mexican Crude Rubber*, and cites *Bozo I* and *Suntide* only in parentheticals for jurisdiction. (R.5229 at ¶31, 5230). Its reasoning is equitable: "Equity requires

that reformation be applied to correct a technical defect." (R.5231 at ¶1). A statute cited for the authority to ***hear*** a claim is not an alternative holding on its merits. (AB32 n.3). The trial court held the statute does not reach the Amendment, and the Association did not cross-appeal. (R.3450-53, 4075–76; AB16.)

In 2019, the Association itself treated the three-year period under §718.110(10) as expired. (R.2181–86, 3086–89).

Even as an independent basis, the statute reaches only "errors or omissions" that "would affect the valid existence of the condominium." Sandy Point had existed as a nine-unit condominium since 1975, independent of Lots 330 and 331, ***and this claim does not disturb that***. *Suntide* and *Providence Square* corrected ownership percentages within an existing regime; neither brought new land into a condominium. And the trial court held that the statute addresses formation only and does not reach the Amendment "adding the two properties." (R.4075–76; 3452; AB16). Classifying a missing page as an error affecting the existence of a condominium treats the expansion as the formation. The Association cannot isolate one phrase of the statute to reach an amendment the court has already held is outside it.

Correction also presupposes a valid submission with a curable error. Under §718.104(2) and (6), land is submitted only when those holding record title join in the declaration. Correction can supply a missing page, not a missing record owner's consent. By the Association's own account, Lot 331 was titled in a profit-sharing trust (R.4103), Gilmore held only a beneficial interest under an agreement for deed (R.4339–41), and the 1986 instrument misidentified the record owner of Lot 330 (R.128,141, 248-50, 3069, 4724). The trial court found a break in the chain of title (R.3452, 8873), which §718.110(10) does not repair. It corrects the language of a declaration that already governs the land. This one never did.

B. Reformation Cannot Supply a Conveyance That Never Occurred or a Mutual Mistake the Record Disproves.

The trial court initially and correctly found that the chain-of-title defects as to Lot 331 are not technical. (R.3447–48, 3452). No owner of Lot 331 ever delivered a deed to the Association or its Developer that dissolved without reserving rights to expand. *See Lance v. Smith*, 167 So. 366, 369 (Fla. 1936) (without delivery a deed [is] at most a mere proposition to convey); *Jeffords v. Jeffords*, 148 So. 2d 43, 44 (Fla. 1st DCA 1962) (same). Absent a conveyance, the

Amendment could not annex Lot 331. *Suntide Condo. Assn*, 504 So. 2d 1343 (Fla. 1st DCA 1987), which corrected percentage shares inside a valid condominium, does not address a failed annexation.

The Amendment required the consent of 100% of unit owners, and the recorded copy omits Unit 107's signature page. Later testimony of intent does not fill that gap.

The Association relies on "unrefuted evidence of intent" to prove a "meeting of the minds." (AB17, 32–35). The record refutes it. The Association pleaded "oversight and/or mutual mistake" (R.1033, 4058, 4417, 4422) but later conceded "[t]here is no claim that there was a mutual mistake concerning the 'terms' of the Declaration, or the intent." (R.14115). Reformation requires clear and convincing proof of a mutual mistake. *Providence Square*, 507 So. 2d at 1369. Without one, reformation fails. *Id.* And the same owners contemporaneously executed, and for decades operated under, a Maintenance Agreement whose assessment terms conflict with the amendments. (R.7945–60). Two conflicting instruments cannot both reflect the parties' agreement; at a minimum, they created a factual dispute precluding summary judgment. (R.2424-26, 3968-69, 4858-4873, 9812-13).

Petkovich's filing of the 2016 quiet title suit is not "inequitable conduct" by a party to the 1986 writing. (R.1889); *Newman*, 576 So. 2d at 1353.

C. The Reformation Counterclaim Is Time-Barred, and the Association's Reliance on § 95.231 Contradicts Its Own Order.

The Association's statute-of-limitations arguments fail. The Amendment is a written instrument, not a deed, and §95.11(2)(b) imposes a five-year limitation on equitable actions founded on a written instrument which the Association claimed was its "title". (R.3475–76, 4862). That is "the appropriate statute of limitations for a reformation action of a recorded property declaration." *Hogg v. Villages of Bloomingdale I Homeowners Ass'n*, 357 So. 3d 1271, 1275–76 (Fla. 2d DCA 2023). The amendment was recorded on November 10, 1986, and the Joinder on December 14, 1988; the periods ran by November 10, 1991, and December 14, 1993. The Association first sought reformation on April 17, 2017. (R.608–755). The Association pled the same statute against Petkovich (R.2664; 3427, 3456), and it argues here that challenges to a recorded declaration "accrue on the date of that instrument's recording." (AB60 (citing *Gallery One*, 415 So. 3d at 1081–82)).

Applied to its own counterclaim, that rule establishes accrual in 1986. Below, the Association instead argued that §95.11(2) did not begin to run until it was served on October 24, 2016. (R.14116). That concedes the statute governs and disputes only accrual, which *Hogg* and *Gallery One* resolve against it. In *Hogg*, the Second District reversed a ruling that, like this one, found the statute inapplicable because the association sought to make the documents "reflect the intentions of the parties." 357 So. 3d at 1275–76. As opposed to the *Hogg* Association that sued within months, no discovery rule helps the Association (R.14115–16): it executed the 1988 Joinder to address the 1986 defects, then waited decades. (R.8210 n.6; 13847).

Nor does *Allie v. Ionata*, 503 So. 2d 1237 (Fla. 1987), revive the counterclaim. *See Rybovich Boat Works, Inc. v. Atkins*, 585 So. 2d 270, 271–72 (Fla. 1991). The reformation here established the Association's claimed interest in Lot 331 for the first time; that relief falls outside *Allie*.

The defense was not waived. Petkovich's summary judgment papers argued that "the five (5) year statute of limitations found in [section] 95.11(2)(b) … would bar any action for reformation" (R.3475–76, 4862), and he raised *Hogg* within two months of its

March 17, 2023 decision. (R.8745). An unpled defense tried by express or implied consent is treated "in all respects as if [it] had been raised in the pleadings." Fla. R. Civ. P. 1.190(b); *Book v. City of Winter Park*, 718 So. 2d 945, 947 (Fla. 5th DCA 1998); *Paul Gottlieb & Co. v. Alps S. Corp.*, 985 So. 2d 1, 5 (Fla. 2d DCA 2007). An issue is tried by consent when the opposing party does not object, *Dep't of Revenue v. Vanjaria Enters., Inc.*, 675 So. 2d 252, 254 (Fla. 5th DCA 1996), including at summary judgment. *Deer Brooke S. Homeowners Ass'n v. Battles*, 304 So. 3d 40 (Fla. 2d DCA 2020).

The Association did not object. It answered on the merits (R..3478-79, 4026-28, 4865), raised no objection at the June 17, 2020 hearing where counsel argued it (R.15337–401), and first asserted waiver in 2023 (R.14873–75). Having pled §95.11(2)(b) itself as to the same instruments, it cannot claim surprise. (R.2664.) *Raimi v. Furlong*, 702 So. 2d 1273, 1285 (Fla. 3d DCA 1997), is not to the contrary; and the question here was legal. At a minimum, the remedy is remand to permit amendment. *See Lobrillo v. Brokken*, 837 So. 2d 1059 (Fla. 3d DCA 2002).

The Association's delay also forecloses equitable relief. Petkovich pled laches barring reformation, alleging the Association

knew of the defects as the 1988 Joinder attempted to fix the issues and that most individuals with knowledge of the instruments are deceased. (R.4066, 4079). Laches requires undue delay and resulting prejudice. *Niagara Fire Ins. Co. v. Allied Elec. Co.*, 319 So. 2d 594 (Fla. 3d DCA 1975); *George G. Sharp, Inc. v. Doric Marine*, 544 So. 2d 228 (Fla. 3d DCA 1989). The delay here spans decades, and the prejudice is the loss of the evidence on which reformation depends: the Association proved the deceased signatories' intent largely through surviving owners' "knowledge and belief." (R.14742). *See Baker v. Baker*, 920 So. 2d 689 (Fla. 2d DCA 2006) ("loss or obscuration of evidence"). If, as the Association argued, limitations do not apply in equity (R.4462-4081), laches governs, and the record refutes its claim that it "did not sleep on its rights." (AB46; R.4079).

The Association's treatment of §95.231 is equally fatal. The Reformation Order it drafted devotes ¶30 to §95.231 as a curative statute asserting that Petkovich is attacking his own unit deed. (R.5228). The Association now says the order "does not rely" on §95.231 except to reject Petkovich's limitations defense. (AB36–37). If ¶30 does substantive work, the order relies on a statute the trial court had found "cannot validate conveyances which were otherwise

invalid." (R.3452). If not, the order must stand on equity and §718.110(10) alone, neither of which can annex land never conveyed. And ¶29 states the instrument is not a deed, while §95.231(1) applies only to instruments executed under §689.01—*i.e.*, deeds. *Davis v. Hinson*, 67 So. 3d 1107, 1111–12 (Fla. 1st DCA 2011). The Association loses under either reading.

The Reformation Order should be reversed.

IV. SUMMARY JUDGMENT ON PETKOVICH'S ALTERNATIVE CONDOMINIUM ACT VIOLATION CLAIMS WAS IMPROPER.

The Association argues that Petkovich's Chapter 718 claims were limited to the assessment theory in Count VI. But §718.303 provides a private right of action for any violation of the Condominium Act or the governing documents, and by pleading it Petkovich put the Association on notice. It is the pled facts that matter, and the trial court erred by limiting §718.303 to §718.116(9). The Association concedes that, if so, "remand should be limited to considering the merits of the unpled theories." (AB65–66.) Petkovich asks for that remand.

The no-damages argument addresses only the years Petkovich withheld payment—not the years he paid, or the Association's

admissions that it assessed owners under the invalid Maintenance Agreement since 1986 (R.6606–14), failed to maintain official records under § 718.111(12) (R.8016–17), and commingled reserve and operating funds under §718.111(14) (R.8019). That evidence precluded summary judgment.

Finally, invited error does not apply. Rule 1.510(a) requires that the court "shall state on the record the reasons for granting or denying the motion"; the duty is the court's, and it is mandatory. *Risman v. Seaside Villas Condo. Ass'n*, 356 So. 3d 901, 905 (Fla. 3d DCA 2023). Submitting an order at the court's direction obviously is not a waiver of either side's objection to it. The court stated only that the additional theories "weren't pled" and gave no reason for rejecting the pled assessment claim. (R.10531–33).

CONCLUSION

For the foregoing reasons, Plaintiff-Appellant, David Petkovich, respectfully requests that this Court reverse the Final Judgment as follows:

1. Reverse as to Association's Counterclaim for reformation and remand for instructions to enter judgment in favor of Petkovich

on the issue of reformation or alternatively remand for trial on the issue of reformation.

2. Reverse the final judgment treating quiet title as moot and remand for entry of judgment for Petkovich or further proceedings; the quiet title claim must be addressed regardless of the reformation ruling.

3. Reverse the Chapter 718 summary judgment and remand for consideration of the pled assessment claim and, as the Association acknowledges, the additional theories.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on October 15, 2026, a true and correct copy of the foregoing document was electronically filed with the Clerk of Court and copies will be delivered to all counsel of record through the Florida Courts E-Filing Portal.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that the type style utilized in this Reply Brief is Bookman Old Style 14-point font and based upon the word count of Microsoft Word, this Reply Brief contains 3,971 words.

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